

Theories of Punishment

A concise Legal English study guide

Punishment is the legal consequence that may follow a criminal conviction. Depending on the offence, it may take the form of a **fine**, **community service** or **imprisonment**. Theories of punishment explain why the state punishes an offender and what the punishment is intended to achieve.

Criminalisation and punishment

Criminalisation asks why a particular act or omission should be treated as a criminal offence.

Punishment asks a different question: after a person has been found guilty, why should a sanction be imposed, and what purpose should it serve?

Four common justifications are deterrence, rehabilitation, retribution and incapacitation. Each theory focuses on a different purpose and may support a different type or degree of punishment.

1 Deterrence

Deterrence seeks to prevent future crime by making the consequences of offending sufficiently unattractive. A person may decide not to commit an offence after seeing that another offender received a serious punishment.

The central idea

- Punishment should make the **risk of offending** outweigh the expected benefit.
- The theory is especially easy to understand in relation to **crimes of benefit**, such as theft or fraud.
- A punishment that is too small in comparison with the expected gain may have little deterrent effect.

Effect on punishment

Deterrence may support severe penalties because the threatened consequence must be strong enough to discourage the offence. This also reveals a possible difficulty with the theory: it may be used to justify increasingly harsh punishment in the name of preventing future crime.

2 Rehabilitation

Rehabilitation aims to reform the offender and enable that person to return to society without committing further offences. The punishment process should help the offender understand and change the behaviour that led to the crime.

The central idea

- The main focus is the **offender's reform**, rather than the suffering imposed on the offender.
- The intended result is a reduction in **recidivism**, which means re-offending after punishment.
- A successful punishment should help the offender re-enter society and avoid another cycle of offence and punishment.

Effect on punishment

The appropriate sanction depends on its capacity to reform. Rehabilitation does not require punishment to be as harsh as possible. It favours the form of punishment most likely to change the offender's future behaviour.

3 Retribution

Retribution holds that a person who commits a criminal wrong deserves punishment for that wrong. The theory looks backward to the offence already committed and treats punishment as a deserved response.

The central idea

- The offender should receive his or her **just deserts**.
- Punishment responds to the seriousness of the wrong rather than primarily trying to reform the offender or influence other people.
- Retribution is often expressed colloquially as **an eye for an eye**, but its central legal idea is proportionality.

Effect on punishment

Punishment should be proportionate to the offence. Less serious offences should receive less serious punishment, while more serious offences may justify more severe punishment. A punishment that exceeds the seriousness of the wrong conflicts with this principle.

4 Incapacitation

Incapacitation protects society by restricting an offender's ability to commit further offences. It is based on the view that some offenders may pose a continuing danger to others.

The central idea

- The immediate purpose is the **protection of society**.
- The offender is prevented from committing further offences in the community by being removed from it.
- The theory is most relevant to serious offences and offenders considered dangerous.

Effect on punishment

Imprisonment is the clearest example because it physically removes the offender from the community. A fine or fixed financial penalty normally does not incapacitate an offender in this sense.

Comparison of the four theories

Theory	Main purpose	Primary focus	Influence on punishment
Deterrence	Prevent future offending	Potential offenders and their choices	The penalty must be strong enough to discourage the offence
Rehabilitation	Reform the offender and reduce re-offending	The offender's future behaviour	The sanction should support effective reform
Retribution	Impose a deserved response to wrongdoing	The past offence and its seriousness	The punishment should be proportionate to the wrong
Incapacitation	Protect society from further harm	The danger posed by the offender	The sanction restricts the offender's ability to offend

Key terms

Criminalisation: the process of making an act or omission a criminal offence

Punishment: a legal sanction imposed after a criminal conviction

Deterrence: the prevention of crime through the threat or example of punishment

Rehabilitation: the reform of an offender so that the person can return to society without re-offending

Retribution: punishment imposed because the offender deserves a proportionate response to the wrong committed

Incapacitation: the restriction of an offender's ability to commit further offences

Recidivism: the repetition of criminal behaviour after punishment; also called re-offending

Proportionality: the principle that the severity of punishment should correspond to the seriousness of the offence

Final point

The four theories answer different questions. Deterrence asks how punishment can discourage crime. Rehabilitation asks how the offender can change. Retribution asks what punishment the offence deserves. Incapacitation asks how society can be protected. In practice, a single sentence may reflect more than one of these purposes.